

Smt. Sushila Devi v. State of U.P. — disputed bills and recovery citation remitted to Clause 6.5(b)

High Court of Judicature at Allahabad · Division Bench · 9 February 2021 · WRIT - C No. 4189 of 2021 · **Writ disposed; Clause 6.5(b) representation directed; coercive action stayed six weeks.**

HEADNOTE

A writ challenging an electricity recovery citation and seeking recasting of disputed bills is not decided on merits. The consumer is directed to a representation under Clause 6.5(b) of the Electricity Supply Code, 2005. Coercive recovery on the citation is stayed for six weeks or until that decision, whichever is earlier, but only if the representation is filed.

FACTUAL SUMMARY

Smt. Sushila Devi challenged a recovery citation dated 31 December 2020 for Rs.1,27,504, seeking its withdrawal from the District Magistrate, Prayagraj, and recasting of her electricity bills from August 2018 to January 2021 on past-consumption rates with credit of deposits already made. The Power Corporation objected that accuracy of the bills was in dispute, so the statutory remedy lay under Clause 6.5(b) of the Electricity Supply Code, 2005. Petitioner's counsel accepted an opportunity to file a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

alternate remedy for disputed electricity bills

HOLDING

A writ disputing the accuracy of electricity bills and seeking quashing of a recovery citation is not entertained on merits. The consumer must move a representation under Clause 6.5(b) of the Electricity Supply Code, 2005. The Court directed filing within two weeks, decision by a reasoned speaking order after hearing preferably within four weeks, and stayed coercive action on the 31.12.2020 citation for six weeks or until that decision, whichever is earlier, with the stay lost if no representation is filed. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a recovery citation and disputed electricity bills was not decided on merits because Clause 6.5(b) supplies the statutory forum. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Dispute over accuracy of bills from August 2018 to January 2021 was sent to the competent authority under Clause 6.5(b). ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's objection and the petitioner's acceptance, the Court directed a Clause 6.5(b) representation rather than certiorari or mandamus on the bills. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS FROM AUGUST 2018 TO JANUARY 2021 AND VALIDITY OF THE RECOVERY CITATION DATED 31.12.2020

The Court expressly declined to enter the merits and remitted the dispute to Clause 6.5(b). ¶ 1